

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
LEROY PRESSLEY,

Petitioner,

-against-

INDEX NO.:

PETITION

THE CITY OF NEW YORK, SGT. BRYAN PIERRE
SHIELD NO.: 1796, POLICE OFFICERS "JOHN DOE
#1-10", said names being fictitious and presently unknown
and intended to identify the arresting officers from the 105th
and 107th Precincts,Respondents.
-----XSOLEDAD RUBERT, an attorney duly admitted to practice law in the State of New
York, affirms the truth of the following:

1. I am a member of the law firm of RUBERT & GROSS, P.C., attorneys for
Petitioner herein, and as such, I am fully familiar with the facts and circumstances of this action.
2. This affirmation is respectfully submitted in support of the instant Petition,
pursuant to General Municipal Law 50-e(6) which seeks permission to file an amended Notice of
Claim, *nunc pro tunc*, to add SGT. BRYAN PIERRE to a Notice of Claim timely filed against
the City of New York on July 29, 2015 for damages resulting from the false arrest and malicious
prosecution by THE CITY OF NEW YORK and to correct the address where Plaintiff was
arrested. *A copy of Petitioner's Proposed Amended Notice of Claim is attached as Exhibit "A."*
3. The details of the events leading up to Petitioner's arrest and malicious
prosecution are laid out in detail in his affidavit attached hereto as *Exhibit "B."*
4. Briefly, on April 22, 2013 at approximately 4:30 p.m., at Petitioner's home
located at 67-16 Parsons Boulevard, Apt. 5D, Flushing, New York in the County of Queens, City

and State of New York, Petitioner was wrongfully arrested by members of the NYPD from the 105th and 107th precincts, including Sgt. Bryan Pierre, Shield No.: 1796, for a shooting that occurred at 4:00 a.m. in Queens County the same morning. *Exhibit "B"*.

5. Sgt. Bryan Pierre, Shield No.: 1796, signed a criminal complaint against Petitioner even though he was not present at the time and location of the shooting and did not observe any of the acts that he claimed supported probable cause to arrest Petitioner. *Exhibit "B"*.

6. Police officers from the 105th and 107th Precincts searched and ransacked Petitioner's car and home, without a warrant. *Exhibit "B"*.

7. Thereafter, Petitioner was taken to the 105th Precinct located at 92-08 222nd Street, Queens Village, NY 11428, forced to participate in an unconstitutional line-up and held for several hours before being transferred to Central Booking. *Exhibit "B"*.

8. After Petitioner was arraigned on or about April 23, 2013, he was held on \$750,000.00 bail at Riker's Island for over 2 years until all of the charges against him were dismissed on April 30, 2015. *Exhibit "B"*.

9. Petitioner was required to appear in New York County Criminal Court on over twenty occasions for two separate trials involving the same set of false allegations. Sgt. Bryan Pierre testified at the criminal trials. *Exhibit "B"*.

10. On April 30, 2015, all charges against Petitioner were dismissed after the jury returned a not-guilty verdict and he was released from custody. *Exhibit "B"*.

11. On July 29, 2015, Petitioner filed a timely Notice of Claim asserting claims for false arrest, unlawful imprisonment, malicious prosecution, assault and battery, negligent

infliction of emotional distress and negligent hiring, training, supervision and retention. *See Notice of Claim attached hereto as Exhibit "C"*.

12. The timely filed Notice of Claim, however, did not identify the name of the police officer who signed the criminal complaint, as Petitioner could not recall his name at the time. Moreover, Petitioner inadvertently listed his home address at the time of the filing as the address where the arrest took place when in fact, he was arrested at his previous home address, 67-16 Parsons Boulevard, Apt. 5D, Flushing, New York.

13. Petitioner now moves for leave to amend his Notice of Claim to correct the above-mention mistake and omission. *See proposed Amended Notice of Claim attached hereto as Exhibit "A"*.

14. General Municipal Law 50-e(6) provides:

6. Mistake, omission, irregularity or defect. At any time after the service of a notice of claim and at any stage of an action or special proceeding to which the provisions of this section are applicable, a mistake, omission, irregularity or defect made in good faith in the notice of claim required to be served by this section, not pertaining to the manner or time of service thereof, may be corrected, supplied or disregarded, as the case may be, in the discretion of the court, provided it shall appear that the other party was not prejudiced thereby.

15. Here there can be no doubt that Petitioner's failure to identify Sgt. Pierre by name was made in good faith as he did not recall his name at the time of filing and was unable to obtain it in time to include the arresting officer's actual name in the Notice of Claim that he timely filed with the City. Petitioner, however, specifically stated in his original Notice of Claim that he was filing it against the City and "John Doe"; "John Doe" being intended to represent the Police Department employee who was responsible for his arrest and prosecution. *Exhibit C*.

16. Permitting Petitioner to add Sgt. Bryan Pierre to his Notice of Claim will not result in any prejudice to any party. Petitioner was arrested and prosecuted by respondents,

including Sgt. Pierre, from April 23, 2013 until April 30, 2015, when all criminal charges against Petitioner were finally dismissed and he was released from custody. Unquestionably, therefore, respondents prepared numerous documents in connection with Petitioner's arrest and prosecution and have had knowledge of the facts constituting his claims since the Petitioner was arrested.

17. Indeed, the Police Department and more specifically, Sgt. Bryan Pierre, have had in their possession, *ab initio*, all records and information concerning Petitioner's arrest and prosecution and therefore cannot claim that they will suffer any prejudice as a result of the Amendment permitting Sgt. Bryan Pierre to be added to the Notice of Claim that was timely filed.

18. In this regard, it should be noted that General Municipal Law 50-e(6) permits a Notice of Claim to be corrected with respect to any omission or mistake made in good faith at any time. The instant application is being made less than forty five (45) days after the expiration of the ninety day period in which to file a Notice of Claim; before a 50-hearing is held; within a reasonable time after Plaintiff's counsel's learning the name of Sgt. Pierre and well within the statutory one-year-and-ninety-day statutory period in which to commence an action. As such, no party will be prejudiced and the application should be granted.

19. The determination whether to grant leave to serve an Amended Notice of Claim is a question committed to the sound discretion of the court. *Sanchez v City of New York*, 87 A.D.3d 576 (2d Dep't. 2011); *Gatewood v. Poughkeepsie Hous. Auth.*, 28 A.D.3d 515 (2d Dep't. 2006).

20. As can readily be seen from the attached Affidavit, Petitioner has a valid cause of action for all of his underlying claims and the mistake and omission in his original Notice of Claim were made in good faith. *See Exhibit "B."*

21. A reading of the appellate cases dealing with filing of Amended Notices of Claim reveals that the most important criteria in determining whether to permit the amendment is whether the respondent will be prejudiced by said amendment. *See, e.g., Hernandez v. City of Yonkers*, 74 A.D.3d 1025, 903 N.Y.S.2d 150 (2d Dep't. 2010) (wrong description of location did not prejudice City where its employees witnessed the accident); *Gatewood v. Poughkeepsie Housing Auth.*, 28 A.D.3d 515, 813 N.Y.S.2d 203 (2d Dep't. 2006) (wrong accident location in notice of claim did not preclude motion to amend since error corrected at §50-h hearing); *Oschepkova v. New York City Transit Auth.*, 24 A.D.3d 523, 808 N.Y.S.2d 271 (2d Dep't. 2005) (motion to amend properly granted where §50-h hearing clarified manner in which accident occurred); *Barrios v. City of New York*, 300 A.D.2d 480, 751 N.Y.S.2d 562 (2d Dep't. 2002) (no prejudice by erroneous description, since evidence adduced at Section 50-h hearing and photographs attached to the Notice of Claim sufficiently apprised City of accurate location).

22. In this case, because the arrest that led to the initiation and continuation of Petitioner's prosecution was made by Sgt. Bryan Pierre, Sgt. Pierre had actual and immediate knowledge of the facts constituting that claim from the day the arrest took place in April 2013. As such, he cannot claim any prejudice as a result of his being added to the Notice of Claim.

23. Similarly, respondents will not be prejudiced by the Amendment to correct the address of the location where Petitioner was arrested. Although Petitioner erroneously stated in his original Notice of Claim that he had been arrested at 38-08 Beach Channel Drive, Apt. 13D, Far Rockaway, his home address at the time of filing, the fact is that the original Notice of Claim gives sufficient details about the arrest and prosecution for the City to have ascertained the facts constituting Petitioner's claim with a modicum of effort. *See Hernandez, supra; Ramos v. NYCTA*, 876 N.Y.S.2d 13 (1st Dept., 2009) [allowing an amendment to add a claim for wrongful

death did not cause defendant any prejudice]; *Rodriguez v. City of New York*, 579 N.Y.S.2d 57 (1st Dept., 1992) [trial court was justified in granting injured person's cross motion to amend notice of claim against housing authority to specify correct county in which accident occurred, where error was made in good faith and did not mislead or prejudice authority].

24. Significantly, the proposed Notice of Claim does in any way alter Petitioner's theories of liability since the liability of the City is derivative to that of Sgt. Pierre. *See Oschepova v. NYCTA*, 24 A.D.3d 523; *Streletskaya v. New York City Transit Authority*, 27 A.D.3d 640 (2d Dep't 2006).

25. In light of the fact that respondents have had notice of the facts constituting the claim *ab initio*; that the mistake and omission were not made in bad faith; that the timely Notice of Claim gave the municipality notice of the facts that are the basis for the claim and that Petitioner has not yet appeared at a 50-h hearing, the City cannot argue that it will be prejudiced in any way by this amendment. Petitioner's original Notice of Claim was timely filed and this amendment falls squarely within the amendments contemplated by GML §50-e (6).

WHEREFORE, in consideration of the foregoing, Petitioner respectfully requests that the instant Petition be granted in its entirety and that he be permitted to file an Amended Notice of Claim, *nunc pro tunc* adding Sgt. Bryan Pierre as respondent and correcting the location where the arrest took place and for such other and further relief as this Court may deem just and proper.

Dated: New York, New York
September 8, 2015


SOLEDAD RUBERT